



CHAPTER lix.

An Act to confer further powers upon the Shrewsbury Gas Light Company. A.D. 1901.
[2nd July 1901.]

WHEREAS by an Act passed in the first year of the reign of His late Majesty King George the Fourth intituled "An Act 1 Geo. 4.
c. lvi.
" for lighting with Gas the Town and Suburbs of Shrewsbury
" in the County of Salop " certain persons therein named were incorporated into a company under the name of " The Shrewsbury Gas Light Company " (hereinafter called " the Company ") for the purpose of supplying gas within the town of Shrewsbury in the county of Salop and the precincts and suburbs thereof and the Company were empowered to raise by the issue of joint stock a sum not exceeding ten thousand pounds :

And whereas by the Shrewsbury Gasworks Act 1857 (in this Act referred to as " the Act of 1857 ") the said Act was repealed 20 & 21 Vict.
c. lvi.
but the Company was continued incorporated under the same name and the capital of the Company was fixed at a sum of forty thousand pounds and the Company were authorised to borrow the sum of six thousand pounds :

And whereas by the Shrewsbury Gas Act 1878 (in this Act referred to as " the Act of 1878 ") the then existing shares were 41 & 42 Vict.
c. xxxiv.
converted into capital stock (known as the Shrewsbury gas consolidated stock) bearing dividend at the uniform rate of seven pounds ten shillings per centum per annum and the Company were authorised to raise additional capital sufficient to produce a sum of not exceeding forty thousand pounds and to borrow the sum of ten thousand pounds :

And whereas the said additional capital was raised by the creation and issue of Shrewsbury gas consolidated stock to an amount of twenty-five thousand four hundred and ninety pounds which together with the premiums obtained on the sale thereof made up the said sum of forty thousand pounds :

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And whereas the whole of the authorised capital of the Company has been raised and expended and the Company have borrowed on mortgage of the undertaking and now owe a sum of sixteen thousand pounds :

And whereas the demand for gas within the area of supply of the Company is increasing and is likely to continue to increase and for the purpose of meeting such demand it is expedient that the Company should be authorised to raise additional capital as in this Act provided :

And whereas it is expedient that the capital of the Company should be converted into a stock bearing a uniform dividend of five pounds per centum per annum :

And whereas it is expedient that the other provisions contained in this Act be made :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Shrewsbury Gas Act 1901.

Incorporation of general Act.

2. The Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871 is (except where expressly varied by this Act) incorporated with and forms part of this Act.

Application of parts of Companies Clauses Acts.

3. The clauses and provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for nonpayment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The making of dividends ;

The giving of notices ;

The provision to be made for affording access to the special Act by all parties interested ;

and Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III. (relating to

debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts shall extend and apply to the Company and to the additional capital which they are by this Act authorised to raise. A.D. 1901.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

5.—(1) As from and after the thirtieth day of June one thousand nine hundred and one the Shrewsbury gas consolidated stock (hereinafter referred to as “existing stock”) shall by virtue of this Act be converted into an ordinary stock to be called “Shrewsbury gas converted ordinary stock” (in this Act referred to as “converted stock”) entitled to a uniform maximum dividend of five per centum per annum as follows (that is to say):— Conversion of existing ordinary capital.

Sixty-five thousand four hundred and ninety pounds existing stock into ninety-eight thousand two hundred and thirty-five pounds converted stock.

(2) The converted stock shall be divided among and vested in the several persons who on the said thirtieth day of June one thousand nine hundred and one are registered on the books of the Company as holders of the existing stock in the proportion of one hundred and fifty pounds of converted stock for every one hundred pounds of existing stock held by them.

(3) The Company shall create and issue converted stock sufficient for the purposes aforesaid.

(4) All persons in whom any such converted stock shall be so vested shall stand possessed thereof upon the like trusts and subject and liable to the like powers provisions declarations agreements charges liens and incumbrances to which the existing stock in respect of which such converted stock is so vested was subject on the said thirtieth day of June one thousand nine hundred and one and every deed or other instrument and every will or testamentary disposition of or affecting or purporting to affect or deal with the existing stock shall take effect with reference to the whole or a proportionate part as the case may be of the converted stock substituted therefor.

(5) The Company shall call in and cancel the certificates of the existing stock and shall issue in lieu thereof to every holder of existing stock new certificates for the amount of converted stock to which he is entitled under the provisions of this section.

(6) Every new certificate shall be issued free of charge.

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(7) No holder of existing stock shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the stock certificate for which such certificate of converted stock is substituted or shall have proved to the reasonable satisfaction of the Company the loss thereof.

As to reserve
fund.

6. The reserve fund authorised by section 31 of the Gasworks Clauses Act 1847 in respect of the capital of the Company existing at the passing of this Act shall not be increased by reason of the conversion of such capital by this Act authorised but shall so far as regards such capital be limited to the sum of eight thousand pounds.

Power to
raise addi-
tional capital.

7. The Company may raise additional capital not exceeding in the whole eighty thousand pounds by the creation and issue of additional converted stock or of new ordinary stock or new preference stock or wholly or partly by any one or more of those methods but such stock shall not vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of eighty thousand pounds. Provided also that the Company shall not create and issue within the year following the passing of this Act or within any subsequent year any greater nominal amount of additional capital than shall be sufficient to produce in manner aforesaid twenty thousand pounds.

If authorised
capital for
any year
not raised
amount may
be made up
in subse-
quent years.

8. If in any year or years the Company have not created and issued capital to the full amount hereinbefore prescribed in relation to such year or years they may in any subsequent year create and issue in addition to the amount prescribed for such year such a nominal amount of capital as shall be sufficient together with the amount then raised to produce in manner aforesaid twenty thousand pounds in respect of each year expired since the passing of this Act.

New stock
to be subject
to same in-
cidents as
existing
stock.

9. The capital in new stock created by the Company under this Act and the new stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liability rights privileges and incidents whatsoever in all respects as if that capital were part of the capital of the Company of the same class or description existing at the date of the creation of such new stock and the new stock were stock in that capital.

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10. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new stock to which a preferential dividend shall be assigned.

Restrictions
as to votes in
respect of pre-
ferential stock.

11. Except as by this Act provided the profits of the Company to be divided among the holders of stock in any year shall not exceed on the converted stock the rate of five pounds in respect of every one hundred pounds of such stock and on the additional capital to be raised under the powers of this Act the rate of five pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and the rate of four pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

Profits of
Company
limited.

12. Notwithstanding anything in this Act contained the Company shall when any new stock created under the powers of this Act is to be issued and before offering the same to the holder of any other stock in the Company and whether the ordinary stock of the Company is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of stock and that the reserve price put upon such stock shall not be less than the nominal amount thereof and that notice of the amount of such reserve price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority shall be allowed to any holder of stock in the Company except that if any bidding or offer by tender of any holder or holders of stock be the same in amount as any bid or offer made by any other person the bidding or offer of such holder or holders of stock shall be accepted in preference.

New stock
to be offered
by auction
or tender.

13. It shall be one of the conditions of any sale of stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase
money of
capital sold
to be paid
within three
months.

14. The intention to sell any such stock by auction or by tender shall be communicated in writing to the town clerk of Shrewsbury and to the clerks of the district councils having authority within any parts of the limits of supply of the Company

Notice to
be given as
to sale of
stock.

A.D. 1901. — and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits of supply.

Stock not sold by auction or by tender to be offered to holders of stock.

15. When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same shall be offered at the reserve price put upon the same respectively for the purpose of sale by auction or tender to the holders of ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of new stock created under the powers of this Act and the reserve put upon such stock may upon such second auction or tender if the directors of the Company think fit be less than the nominal amount thereof and any stock not then sold shall be again offered to the holders of ordinary stock at the last-mentioned reserve price and so from time to time until the whole of such stock is sold.

Application of premium arising on issue of stock.

16. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend.

Power to borrow in respect of original capital.

17. The Company may forthwith after the passing of this Act borrow on mortgage of the undertaking in respect of the converted stock of ninety-eight thousand two hundred and thirty-five pounds any sums not exceeding in the whole twenty-six thousand six hundred and sixty-six pounds including the sum of sixteen thousand pounds borrowed under the provisions of the Acts relating to the Company.

Power to borrow in respect of additional capital.

18. The Company may subject to the provisions of this Act from time to time borrow on mortgage of the undertaking in respect of the additional capital any sum or sums not exceeding in the whole one-third part of the amount by this Act authorised

to be raised and in respect of each amount of twenty thousand pounds of such additional capital they may from time to time borrow as aforesaid any sum or sums not exceeding in the whole six thousand six hundred and sixty-six pounds but no part of any such sum of six thousand six hundred and sixty-six pounds shall be borrowed until stock for so much of the portion of additional capital in respect of which it is to be borrowed shall have been issued and together with the premium (if any) realised on the sale thereof fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such portion of capital has been issued and together with the premium (if any) fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. A.D. 1901.

19. All mortgages in pursuance of the powers of any Act of Parliament granted by the Company before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over all mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. Priority of existing mortgages.

20. Every provision in any Act relating to the Company passed before the present session of Parliament by which the mortgagees of the Company are empowered to enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver is by this Act repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provision prior to the passing of this Act. Repeal of provisions of former Acts with respect to appointment of receiver.

21. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole. For appointment of receiver.

22. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act Debenture stock.

A.D. 1901. 1863 but notwithstanding anything herein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock or mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages and charged upon the undertaking. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages and debenture stock over other debts.

23. All money to be raised by the Company on mortgage or by debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividends on their mortgages or debenture stock.

Receipt in case of persons not *sui juris*.

24. If any money is payable to a shareholder or stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Application of money.

25. All money raised under this Act by the Company whether by stock debenture stock or borrowing shall be applied only to the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Further provision in respect of votes at meetings of Company.

26. Section 41 of the Act of 1857 is hereby repealed and as from the passing of this Act at all meetings of the Company the holders of stock or shares in the undertaking shall be entitled to one vote in respect of every one hundred pounds or portion of one hundred pounds of stock or in shares held by them. Provided that any holder of stock or shares of an amount less than one hundred pounds shall be entitled to one vote in respect of such amount.

Power to refuse to supply persons in debt for other property.

27. If any person requiring a supply of gas has previously quitted premises at which gas was supplied to him by the Company without paying all gas or meter rent and rent for gas stoves

cookers pipes and fittings due from him the Company may refuse to furnish to him a supply of gas until he pays the same. A.D. 1901.

28. The provisions of the Gasworks Clauses Act 1871 as to accounts shall for the purposes of this Act be varied as follows (that is to say) The Company shall fill up and forward to the local authority on or before the first day of October in every year the annual statement of accounts prescribed by that Act made up to the thirtieth day of June then next preceding instead of the periods mentioned in that Act. As to making out of accounts.

29. From and after the thirtieth day of June one thousand nine hundred and one the following provisions shall apply and have effect with respect to the price to be charged by the Company for gas supplied to persons who shall burn the same by ordinary meter:— Price to be charged for gas supplied to persons who shall burn same by ordinary meter.

If and when throughout any year the Company charge one penny or more less than two shillings and elevenpence per thousand cubic feet for gas consumed within the borough of Shrewsbury the rate of dividend to be paid by the Company for such year may be increased by five shillings in the one hundred pounds on the ordinary shares or stock of the Company in respect of every penny so charged below two shillings and elevenpence:

If and when in any part of any year the Company charge one penny or part of a penny more than three shillings and fourpence per thousand cubic feet for gas consumed within the borough of Shrewsbury the dividend payable by the Company in respect of such year shall be reduced by five shillings in the one hundred pounds on the ordinary shares or stock of the Company in respect of every penny or part of a penny so charged above three shillings and fourpence:

The price to be charged by the Company for gas supplied without the borough of Shrewsbury shall not at any time exceed sixpence per one thousand cubic feet above the price then charged within the borough.

30. If the mayor aldermen and burgesses of the borough of Shrewsbury (in this Act called "the corporation") shall introduce a bill and bonâ fide promote the same in the next or the following session of Parliament to empower them to purchase the undertaking of the Company the Company shall not oppose such Bill except in so far as may be necessary in order to secure the insertion therein As to introduction of Bill by Corporation for purchase.

A.D. 1901. of clauses to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit And if the corporation obtain an Act authorising such purchase and give three months' notice in writing expiring at the end of the financial half year either on the thirty-first day of December one thousand nine hundred and two or the thirtieth day of June one thousand nine hundred and three in the event of such Act being passed in the year one thousand nine hundred and two or on the respective corresponding days of the years one thousand nine hundred and three and one thousand nine hundred and four in the event of such Act being passed in the year one thousand nine hundred and three of their intention to purchase the Company shall as at and from the expiration of such notice sell and transfer and the corporation shall purchase and acquire the undertaking property rights powers and privileges of the Company subject to all the existing mortgages obligations and liabilities of the undertaking.

As to sale of
undertaking
of the
Company.

31. Any such sale and purchase shall be for such price or consideration and on such terms and conditions as may be agreed upon between the Company and the corporation or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the corporation and the expression "lands" shall mean the undertaking of the Company Provided that for the purpose of any such arbitration the sale and purchase shall be deemed to be a sale and purchase by compulsion and not by agreement And in addition to the sum to be paid by the corporation to the Company under the foregoing provisions of this section the corporation shall pay to the Company the costs and expenses incurred by them of and incident to the winding up of the Company and compensation to any officers and servants in the regular employment of the Company for whom no regular office or employment on the same terms shall be found by the corporation in respect of any loss of office or diminution of salary or income the amount of such costs and expenses and compensation in default of agreement to be determined by arbitration as aforesaid Provided that no officer or servant who has been in the employment of the Company for twenty years or upwards shall lose his right to

[1 EDW. 7.]

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compensation as aforesaid by reason of his declining to enter the A.D. 1901.
service of the corporation.

32. All costs charges and expenses of and incident to the Costs of Act.
preparing for obtaining and passing of this Act or otherwise in
relation thereto shall be paid by the Company.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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